

Court No. - 21

Case :- WRIT - C No. - 1243 of 2018

Petitioner :- Istiyak

Respondent :- Superintendent Engineer, E.D.D., P.V.V.N.L. Amroha & 2 Ors.

Counsel for Petitioner :- Rupendra Kumar Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

The electricity connection of the tube-well was in the name of the father of the petitioner Sri Lakhan Khan, who died. After his death, the petitioner made an application for transfer of the same in his name. It was alleged that all the legal heirs have given their consent for mutation. Consequently, the connection was transferred in his name. However, subsequently, one of his brother Sri Mustak made an application under Section 156 (3) of the Cr.P.C. against the authority alleging that in connivance with the petitioner and other heirs and without his consent the connection was transferred in the name of the petitioner, which was rejected. However, in the meantime, the Executive Engineer vide impugned order dated 3.7.2017 set aside the earlier order transferring the connection in the name of the petitioner.

The grievance of the petitioner is that the connection should be restored back in his name.

The procedure for transfer of connection and mutation of name is prescribed under Section 4.44 of the Electricity Supply Code, 2005. In case, the petitioner wants transfer of connection or mutation of his name, he may make an application before the appropriate authority as prescribed under Clause 4.44 of the said Code

and in case such application is made, the concerned authority shall proceed to decide the same following the procedure prescribed by a reasoned and speaking order expeditiously.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 10.1.2018

Ashish Tripathi